

IN THE SUPERIOR COURT OF
THE STATE OF WASHINGTON
COUNTY OF KING

ZACKARIAH BENNETT,
Plaintiff,
vs.
MELVINA MANNING,
Defendant.

Case No.: 23-2-11352-7

MEMORANDUM OF POINTS AND AUTHORITIES
IN SUPPORT OF MOTION FOR RECONSIDERATION

I. INTRODUCTION

Plaintiff, Zackariah Bennett, respectfully submits this Memorandum of Points and Authorities in support of his Motion for Reconsideration pursuant to CR 59. The Motion requests that the Court reconsider its decision granting Defendant's Motion for Summary Judgment due to overlooked material facts, misapplication of legal principles, and misrepresentations made by Defendant's counsel, Nancy Gass.

II. LEGAL STANDARDS FOR RECONSIDERATION

Under CR 59, a court may reconsider its decision based on new evidence, errors of law, or other grounds that justify relief. Courts have broad discretion to reconsider prior rulings to correct errors and prevent injustice.

- **Legal Authority:** *State v. Ellis,* 178 Wn.2d 693, 310 P.3d 121 (2013). Courts possess inherent authority to reconsider decisions to correct errors and ensure justice.

III. GROUNDS FOR RECONSIDERATION

A. Failure to Consider Plaintiff's Opposition:

1. Overlooked Arguments and Evidence:

- The Court's decision did not reflect consideration of Plaintiff's opposition to summary judgment, which detailed significant factual disputes including misrepresentations, fraud, and evidence spoliation. Notably, several claims involve elements that, if proven true, amount to child endangerment.

- **Legal Authority:** *CR 56(c)* states summary judgment is appropriate only when there is no genuine issue as to any material fact.

- **Case Law:** Lambert v. Morehouse, 68 Wn. App. 500, 843 P.2d 1116 (1993) [Summary judgment is improper where reasonable minds could differ as to the facts and inferences].

B. Misrepresentations Made by Opposing Counsel

1. Misrepresentation of Alleged Prior Adjudication:

- Defendant's counsel claimed that all matters had previously been adjudicated, despite the absence of any evidence to substantiate this claim.

2. Misrepresentation of Appeal Status:

- Defendant's counsel incorrectly stated that the appeal of the 2022 DVPO was "denied" when it was actually dismissed as moot and currently pending review by the Supreme Court.

- **Legal Authority:** *RCW 26.50* regarding appeals and protection orders, and *RAP 12.7,* which discusses the appellate court's authority to dismiss cases as moot.

- **Case Law:** *Wessa v. Watermark Paddlesports, Inc.,* Case No. C06-5156 FDB (W.D. Wash. May. 22, 2006). Acknowledging the implications of dismissals as moot in ongoing appeals.

IV. PREJUDICIAL ERRORS AND NEWLY DISCOVERED EVIDENCE

A. Newly Discovered Evidence:

- During discovery, Plaintiff obtained a portion of the security video that Mrs. Manning had withheld in the DVPO cause. Analysis revealed that the video was a 93-second cell phone recording from more than 30 minutes of original footage, with the rest allowed to be auto-deleted after Plaintiff specifically requested the video for exoneration.

- **Legal Authority:** *CR 60(b)(3)* provides relief from judgment based on fraud, misrepresentation, or other misconduct.

- **Case Law:** *In re Marriage of Leslie*, 112 Wn. 2d 612, 772 P.2d 1013 (1989) Relief from judgment can be granted if new evidence, that could not have been found with due diligence in time to move for a new trial, is discovered.

B. Misapplication of Legal Standards & Incorrect Application of Statutes:

- The Court applied RCW 7.105.010(35)(a) instead of RCW 26.50.010, disregarding the effective dates and applicability.

- **Legal Authority:** *RCW 26.50.010* (Domestic Violence), *RCW 7.105.010* (Definitions related to protection orders), and *Washington Session Laws of 2022 ch. 268,* specifying effective dates.

- **Case Law:** *State v. Beaver,* 184 Wn.2d 321, 358 P.3d 385 (2015). Application of statutes must respect delineated effective dates to avoid retroactive enforcement without clear legislative intent.

V. ARGUMENT

A. The Court's Evaluation of Credibility:

- The Court failed to fully consider contradictions within Defendant's submissions and evidence indicating potential fraud. Proper evaluation is necessary for fair adjudication.

B. Legal and Procedural Errors:

- The Court misapplied legal standards, failed to address material facts, and mishandled objections, burden shifts, and contested facts. Reconsideration is warranted under CR 59.

VI. SPECIFIC CLAIMS UNADDRESSED

A. Liberty Interest in Parent-Child Relationship

- Parents and children possess a constitutionally protected liberty interest in companionship and society with each other. This liberty interest is independently held by both parent and child.

- **Legal Authority:** *Smith v. City of Fontana,* 818 F.2d 1411, 1418 (9th Cir. 1987); *Kelson v. City of Springfield,* 767 F.2d 651, 654 (9th Cir. 1985). - The protected liberty interest is rooted in the Fourteenth Amendment, which states that "[n]o State shall . . . deprive any person of life, liberty, or property, without due process of law." - Interference with these liberty interests may give rise to a Fourteenth Amendment due process claim under 42 U.S.C. § 1983.

- **Case Law:** *In Re Matter of Amarreh,* A18-0198 (Minn. App. 2018). Substantial interference with the parent-child relationship can amount to child emotional endangerment, justifying custody modification.

B. Defamation of Character:

- Unaddressed claims regarding public allegations of domestic violence and harm to Plaintiff's reputation.

- Legal Authority: *RCW 4.24.350* provides for a civil action for libel or slander.

- Case Law: *Mark v. Seattle Times*, 96 Wn.2d 473, 635 P.2d 1081 (1981).

C. Intentional Infliction of Emotional Distress (IIED):

- Unaddressed claims of emotional trauma caused by Defendant's actions and statements.

- **Legal Authority:** Elements of IIED under Washington law include extreme and outrageous conduct, intentional or reckless infliction of emotional distress, and actual severe emotional distress.

- **Case Law:** *Kloepfel v. Bokor*, 149 Wn.2d 192, 66 P.3d 630 (2003).

D. Tortious Interference with Parental Rights:

- Recognized where wrongful interference with custody or visitation rights is sufficiently outrageous to justify a claim.

- **Legal Authority:** *RCW 26.09.260* regarding the modification of parenting plans or custody orders.

- **Case Law:** *Wyatt v. McDermott*, 283 Va. 685, 725 S.E.2d 555 (2012).
Troxel v. Granville, 530 U.S. 57 (2000) [Parents have a fundamental right to control the upbringing of their children, and a law that allows anyone to

petition a court for child visitation rights over parental objections unconstitutionally infringes on this right. Courts may not use a freestanding "best interest of the child" standard to overturn parental rights].

- **Statutory Authority:** The Parental Kidnapping Prevention Act, 28 U.S.C. 1738 (A), supports tort remedies available to parents when other parents or third parties interfere with custodial or visitation rights.

E. Fraud:

- **On the Court:** Mrs. Manning made false, unsubstantiated claims of child abuse, abandonment, and drug use to improperly obtain an order of protection and retain the minor child [TB] in Washington State, in defiance of the natural parents' revocation of permissi Using the improperly obtained order of protection, Mrs. Manning misled Mr. Bennett's probation officer to deny his request for travel to Washington and prevented his appearance at the hearing.

- **Voluntary Transfer of Parental Rights:** Manipulating Mr. Bennett into relinquishing parental rights under false pretenses.

- **Case Law:** *Adams v. King County,* 164 Wn.2d 640, 192 P.3d 891 (2008). - Restatement (Second) of Torts § 525: Defines liability for fraudulent misrepresentation inducing another to act.

F. Perjury:

- Claims of perjury based on knowingly false statements under oath might not have been explicitly ruled on by the Court.

- **Legal Authority:** *RCW 9A.72.020* defines perjury in the first degree.

- **Case Law:** *State v. Jessup*, 31 Wn. App. 304, 641 P.2d 1185 (1982) [Perjury claims necessitate clear evidence that false statements were made under oath].

G. Abuse of Process and Due Process Violations:

- Misuse of legal procedures to obtain a default judgment and restraining order under false pretenses
- **Legal Authority:** An action for abuse of process involves misuse of the process for an ulterior purpose.
- **Case Law:** *Sea-Pac Co. v. United Food & Comm. Workers*, 103 Wn.2d 800, 699 P.2d 217 (1985).

H. Custodial Interference:

- Claims of damage due to unlawful custodial interference prior to the termination of parental rights.
- **Legal Authority:** *RCW 9A.40.060* outlines elements of custodial interference. *RCW 26.27.021(1)* defines abandoned. *RCW 26.27.231*, *RCW 26.27.241*, *RCW 26.27.271* outlines temporary emergency jurisdiction, opportunity to be heard, and when jurisdiction should be declined by reason of conduct.
- **Case Law:** *State v. La Mere*, 119 Wn.2d 696, 836 P.2d 158 (1992).

VII. CONCLUSION

For the reasons set forth above, Plaintiff Zackariah Bennett respectfully requests that this Court:

- 1. Vacate the Order Granting Summary Judgment:** Reconsider and deny the Defendant's Motion for Summary Judgment.
- 2. Grant the Plaintiff's Motion to Strike and for Sanctions:** Impose appropriate sanctions for misrepresentations and misconduct.
- 3. Allow the Case to Proceed to Trial:** Permit all unresolved claims to be fully litigated and adjudicated at trial.

Furthermore, Plaintiff requests any other relief that the Court deems just and proper under the circumstances.

DATED this 24th day of July 2024.

Respectfully submitted,

Zackariah Bennett

A handwritten signature in black ink, appearing to read 'Zackariah Bennett', written in a cursive style.